

#	Case Name	Tentative
50	<i>Dorantes vs. Alexander</i>	Defendant Mondragon's Demurrer to each cause of action of the Second Amended Complaint on the grounds of failure to state a cause of action [CCP §430.10d(e)] and uncertainty is OVERRULED. Defendant Mondragon's demurrers are based upon the argument that he was not an owner of the property and, therefore, cannot be liable under the causes of action asserted. This argument ignores the allegation of the Second Amended Complaint that plaintiffs paid their rent to Mandragon and he told them that he was an owner of the property. [SAC, ¶6] It is not the function of a demurrer to challenge the truthfulness of the complaint; for purposes of ruling on a demurrer, all facts pleaded in the petition are assumed to be true however improbable they may be. [<i>Aubrey v. Tri-City Hospital District</i> (2002) 2 Cal.4th 962, 966-967] To this end, the Court cannot consider facts outside those alleged in the Complaint, like those alleged in Mondragon's Statement of Relevant Facts in his Memorandum of Points & Authorities. Mondragon's relationship to the property needs to be ascertained before liability under the causes of action alleged can be ascertained. This will require the evaluation of evidence. The Court cannot do this on a demurrer. Mondragon's Demurrer to the Second Amended Complaint is OVERRULED. Defendant is ordered to answer by August 3, 2026. Mondragon is to give notice.

51	<i>Gulley vs. James Rivers Insurance Company</i>	Plaintiff Calvin Gully’s Motion for Order Compelling Defendant James River Insurance Company to Serve Further Verified Responses to Requests for Production of Documents, Set Two, and to Produce Documents, is granted in part and denied in part. Plaintiff moves, under CCP section 2031.310, for an order compelling Defendant to provide further verified responses to his second set of requests for production, nos. 58 through 65. When responding to an inspection demand, a party is required to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210, subd. (a).) On receipt of the response, the demanding party may move to compel further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The motion must set forth specific facts showing good cause justifying the discovery, and it must be accompanied by a separate statement. (Code Civ. Proc., § 2031.310, subd. (b).) Here, the requests at issue all arise from Defendant’s use of a private investigator to gather information regarding Plaintiff. Specifically, Plaintiff demands production of: • No. 58: Any and all video recordings, motion pictures, or digital video files depicting the Plaintiff, including the original, raw, unedited footage in its entirety, as well as any edited or
----	---	--

		“highlight” versions intended for use at trial. • No. 59: Any and all still photographs, digital images, or negatives taken of the Plaintiff by any investigator, agent, or employee of the Responding Party. • No. 60: Any and all written reports, daily activity logs, field notes, or summaries prepared by any person or entity who conducted surveillance of the Plaintiff. • No. 61: The curriculum vitae (CV), resume, or statement of qualifications for each individual or agency who conducted the surveillance or captured the recordings requested in Request No. 58. • No. 62: Any and all contracts, “scope of work” agreements, or retention letters between Responding Party (or their counsel) and the private investigation firm or individuals hired to perform surveillance. • No. 63: Any and all invoices, billing statements, or payment records related to the surveillance of the Plaintiff (monetary amounts may be redacted if claimed as work product, but dates and durations of surveillance must remain visible). • No. 64: All written or electronic communications including emails, text messages, and letters) containing instructions, objectives, or directions provided to the investigator regarding the surveillance of the Plaintiff.
--	--	---

- | | |
|--|---|
| | <ul style="list-style-type: none">• No. 65: The “native” files for all digital media produced, specifically including all METADATA which identifies the date, time, GPS location, and camera settings for each recording or photograph. |
|--|---|

In response to each of these requests (with the exception of no. 62), Defendant responded with the following:

- Defendant incorporates its preliminary statement, general objections, and objections to the instructions and definitions outlined above. Discovery is still ongoing and Defendant reserves its right to further supplement its response at a later date.
- Defendant objects to this Request on the grounds that it is vague and ambiguous. Defendant objects to this Request to the extent it seeks documents and information protected by attorney-client privilege and/or work product protection. Defendant objects to this Request to the extent it encompasses documents that contain confidential or proprietary information and/or trade secrets.
- Subject to and without waiving the foregoing objections, and after diligent search and reasonable inquiry, Defendant refers Plaintiff to the non-privileged, non-confidential, responsive documents from Plaintiff’s claim file already produced in this action.

	In response to no. 62, Defendant stated responded with the same response set forth above, <i>except</i> paragraph 3 was not included. The attorney-work product doctrine is codified in CCP section 2018.030. It provides: a) A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances. b) The work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice. (Code Civ. Proc., § 2018.030.) It has long been held that the attorney work product protection applies to investigative material, which was taken as part of trial preparation, whether they are gathered by counsel or by counsel's agent at the direction of counsel. (See <i>Suezaki v. Superior Court of Santa Clara County</i> (1962) 58 Cal.2d 166, 177 [filming of plaintiff by defendant's attorney is the attorneys' work product, but not protected by attorney client privilege]; <i>Southern California Edison Co. v. Superior Court</i> (2024) 102 Cal.App.5th 573, 587 ["It is well established that the work product doctrine " "includes ... the work of those employed by [an attorney] or for him by his client, in investigating both the favorable and unfavorable aspects of the case"].)
--	---

The materials receive “absolute protection” if they “reveal the attorney’s thought process,” which should be determined on a “case by case” basis. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 495–496.) On the other hand, if the material is merely “nonderivative” (i.e. “evidentiary” in nature despite the work invested by counsel in obtaining or locating it), and does not reflect the attorney’s mental impressions, conclusions, etc., then it is generally discoverable as “mere evidence.” (Cal. Prac. Guide Civ. Pro. Before Trial ¶ 8:243.) If the material is somewhere “in between,” such as “photos or films *reflecting counsel’s strategies and tactics* in preparation for trial,” then it should be treated as “qualified work product,” which should only be produced if the demanding party shows “a special need for discovery and inability to obtain similar information, etc.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:243.2, emphasis in original.)

Here, the Court finds the documents requested by nos. 58, 59, 61, and 65, should be produced. The materials targeted by the requests are largely evidentiary in nature, and appear to consist of mere surveillance information, which would not reflect counsel’s mental impressions or conclusions. Further, no. 61 is merely a request for the investigator’s CV, which is not subject to work-product protection or attorney-client privilege.

However, the Court finds the motion should be denied with respect to nos. 60, 62, 63, and 64. Plaintiff has not shown “good cause” for any of these requests. It is unclear how any of these materials, particularly the invoices, would be directly relevant to Plaintiff’s breach of implied

		covenant claim. Further, materials like instructions, scope of work, and reports from the agent, are likely to include the attorney's impressions, conclusions, opinions, or theories, as they were communicated to the agent. Defendant is ordered to serve further responses and production for nos. 58, 59, 61, and 65, within 15 days of the notice of ruling. In connection with this motion, the Court declines to award monetary sanctions, because the results were "split," with each side prevailing on half of the requests at issue. Plaintiff shall give notice of the ruling.
52	<i>Houck v. Cole</i>	The Court denies Defendant/Cross-Complainant Jason Cole's Motion to compel compliance with his subpoena for Plaintiff/Cross-Defendant Stephen Houck's psychiatric records from Plaintiff's mental health therapist, Irvine Family Counseling. If a nonparty disobeys a deposition subpoena, the subpoenaing party may seek a court order compelling the nonparty to comply with the subpoena within 60 days after completion of the deposition record. (CCP § 2025.480(b); <i>see Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127.) "A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail at an